

HOUSE No. 418

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the adjudicative process for the Board of State Examiners of Electricians.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/16/2025</i>

HOUSE No. 418

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 418) of Michael P. Kushmerek relative to the adjudicative process for the Board of State Examiners of Electricians. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the adjudicative process for the Board of State Examiners of Electricians.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 32A of chapter 13 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following paragraph:-

3 Dispute hearings before the board of state examiners of electricians and the board of
4 electricians' appeals shall be open to the public. The boards shall permit a member of the public
5 for whom the electrician in the dispute has conducted electrical work to submit a written
6 affidavit or testimonial about the electrician's work.

7 SECTION 2. Section 1 of chapter 141 of the General Laws, as so appearing, is hereby
8 amended by inserting before the definition of "Fee" the following definition:-

9 "Faulty work", any electrical work that fails to meet the applicable standards of the most
10 recently published NFPA 70, National Electrical Code (NEC), state regulations or other industry
11 standards, including work that is incomplete, defective, improperly installed or unsafe.

12 SECTION 3. Said chapter 141 is hereby amended by adding the following section:-

13 Section 11. If an electrician fails to perform electrical work in accordance with the
14 standards described in this chapter, the electrician shall repay any deposit paid by the client for
15 the electrical work.

16 In cases where the board of electricians' appeals determines an electrician's work was
17 faulty work, the electrician shall reimburse the client the full deposit or any other advanced
18 payment within 30 days of the determination.